

PureTask pro-ic- agreement

PureTask – Pro Independent Contractor Agreement

**Version: 2.0 Effective as of the date electronically
accepted by the Pro at signup.**

This Pro Independent Contractor Agreement (this “**Agreement**”) is entered into between **PureTask LLC**, a California limited liability company (“**PureTask**,” “we,” or “us”), and the individual or business entity accepting this Agreement (“**Pro**,” “you,” or “your”). This Agreement supplements, but does not replace, the **PureTask Terms of Service, Privacy Policy, Acceptable Use Policy, Cookie Policy, Cancellation Policy, and SMS/TCPA Consent Disclosure** (collectively, the “Platform Terms”). In the event of any conflict between this Agreement and the Platform Terms, this Agreement controls **with respect to the Pro-PureTask relationship**.

By clicking “I Accept,” signing electronically, or otherwise indicating assent, you acknowledge that you have read, understood, and agree to be bound by this Agreement.

1. Recitals

A. PureTask operates a technology platform (the “**Platform**”) that helps Clients discover, schedule, communicate with, and pay independent cleaning professionals.

B. Pro is an **independent business** engaged in the trade, occupation, or business of providing cleaning services to the public, separate and apart from PureTask. Pro represents that Pro holds or will hold **at least one** of the following at all times during the term of this Agreement: a valid business license; a valid Employer Identification Number (EIN); or a valid Certificate of Insurance evidencing Commercial General Liability coverage of at least **\$300,000 per occurrence and \$1,000,000 aggregate**, naming PureTask LLC as an additional insured.

C. Pro desires to use the Platform to discover and book cleaning service opportunities with Clients, and PureTask is willing to make the Platform available to Pro, subject to this Agreement.

D. The parties intend their relationship to be that of two **independent businesses**. Pro is **not** an employee, joint venturer, agent, partner, or franchisee of PureTask. PureTask is **not** an employer, principal, joint venturer, or franchisor of Pro.

2. Definitions

- “**Booking**” means a service engagement between a Client and Pro initiated and confirmed through the Platform.
- “**Client**” means an end user of the Platform who books cleaning services.
- “**Platform Fee**” means the flat per-Booking fee that PureTask charges the Pro as described in Section 7.
- “**Pro Services**” means the cleaning services that Pro provides directly to a Client under a Pro-Client service contract.
- “**Service Area**” means the geographic area in which Pro chooses to make Pro Services available, within the Operating

States of California, Texas, and Florida.

3. Independent Contractor Status (Material Term)

The parties expressly intend and agree that Pro is an **independent contractor**, not an employee of PureTask.

3.1 No Employment Relationship

This Agreement does not create:

- An employer-employee relationship;
- An agency relationship (except for the limited “agent of the payee” authority described in Section 8);
- A partnership, joint venture, or franchise;
- A fiduciary relationship; or
- Any obligation by PureTask to provide Pro with work, hours, or income of any kind.

3.2 Pro’s Acknowledgment

Pro acknowledges that, as an independent contractor:

- Pro is **not entitled** to any employee benefits from PureTask, including health insurance, retirement contributions, paid time off, sick leave, workers’ compensation coverage (PureTask does not provide it; Pro is responsible for obtaining it where required by law), unemployment insurance, or disability benefits.
- PureTask **will not withhold** any federal, state, or local income, payroll, Social Security, or Medicare taxes from amounts payable to Pro. Pro is solely responsible for all such taxes.
- PureTask **will not provide** Pro with tools, supplies, equipment, transportation, uniforms, or training, except for use of the Platform itself.
- Pro is **not eligible** for unemployment benefits based on work performed through the Platform.

3.3 ABC Test Acknowledgment (California)

For purposes of California Labor Code § 2775 et seq. (the “ABC Test”), the parties agree and acknowledge:

- **Prong A (No control over performance):** Pro is free from PureTask’s control and direction in the performance of Pro Services, both under this Agreement and in fact, as further set forth in Section 4.
- **Prong B (Outside usual course of business):** PureTask’s usual course of business is the development and operation of a marketplace technology platform, payment-processing facilitation, dispute mediation, and trust-and-safety services. PureTask is **not** in the business of providing cleaning services. Pro performs cleaning services, which are outside PureTask’s usual course of business.
- **Prong C (Independently established trade):** Pro is customarily engaged in an independently established trade, occupation, or business of the same nature as the Pro Services, as evidenced by Pro’s business license, EIN, or insurance, and Pro’s right to provide cleaning services through other platforms, agencies, or directly to clients.

3.4 Multi-State Acknowledgment

For purposes of **Texas Labor Code § 201.041, Florida Statutes § 440.02(15)(d)**, and the multi-factor common-law and IRS tests applicable in those states, the parties agree that the substance of their relationship — including the freedoms, responsibilities, and economic indicia set forth in this Agreement — supports independent contractor status.

4. Pro's Rights, Freedoms, and Control

4.1 Schedule and Availability

Pro chooses when to be available on the Platform, when to log in or log off, which days and hours to work, and how many Bookings to accept. No minimum availability, jobs, or login duration is required.

4.2 Rates

Pro sets Pro's own rates, subject only to a published maximum-rate ceiling. PureTask does **not** set a minimum rate, wage floor, or required surcharge.

4.3 Accept or Decline Without Penalty

Pro may accept or decline any Booking offer for any lawful reason. Acceptance or decline rate will **not** be used to suspend or penalize the account.

4.4 Service Area

Pro defines Pro's own Service Area within the Operating States. PureTask does not require any particular area.

4.5 Methods, Tools, Supplies, Vehicles, Attire

Pro provides Pro's own equipment, supplies, transportation, and attire. PureTask does **not** require any brand, method, uniform, or vehicle. Pro chooses order, pace, and technique.

4.6 Work for Others

Pro may, and is encouraged to, work outside the Platform, including for competitors (Handy, TaskRabbit, Thumbtack, NextDoor, direct clients, etc.). No exclusivity.

4.7 Subcontracting and Substitution

Pro may subcontract or substitute a qualified replacement to perform any Booking, provided the substitute:

- Is registered on the Platform;
- Has completed PureTask's identity and background screening;
- Is **at least 18 years of age**; and
- The Client is notified through the Platform.

Pro remains responsible for the substitute's performance.

4.8 No Required Training

PureTask does not require Pro to complete cleaning training, attend meetings, or follow any cleaning methodology. Optional resources are informational only.

4.9 No Exclusive Dealing

Pro is not required to work exclusively for PureTask. No non-compete obligation.

5. Pro's Responsibilities

5.1 Tools, Supplies, Transportation

All cleaning supplies, equipment, vehicles, fuel, and resources required for Pro Services.

5.2 Licenses, Permits, Certifications

All licenses, permits, and certifications required by federal, state, or local law where Pro Services are performed.

5.3 Insurance

Maintaining the insurance described in Section 1.B, including:

- **Commercial General Liability** — minimum **\$300,000 per occurrence** and **\$1,000,000 aggregate**;
- **Naming PureTask LLC as additional insured** for ongoing operations under the CGL policy if relied on for eligibility;

- **Workers' compensation insurance** as required by law if Pro engages employees or subcontractors;
- **Commercial auto insurance** if a vehicle is used in performing Pro Services.

Pro will provide a Certificate of Insurance upon PureTask's reasonable request and will notify PureTask within **15 days** of any material change or cancellation.

5.4 Taxes

All federal, state, and local taxes, including income tax, self-employment tax (Social Security and Medicare), and any state or local taxes. **Stripe** will issue **IRS Form 1099-K** (or equivalent) based on connected-account transaction volume. PureTask does **not** issue Form W-2 or Form 1099-NEC.

5.5 Subcontractor / Employee Compliance

If Pro engages employees or subcontractors, Pro is solely responsible for all employment-related compliance, including wage-and-hour laws, payroll taxes, workers' compensation, anti-discrimination, and immigration obligations.

5.6 Compliance with Law

Compliance with all federal, state, and local laws applicable to Pro Services and Pro's business.

5.7 Performance of Booked Services

Performing Pro Services for accepted Bookings competently, safely, and in accordance with the scope agreed with the Client.

5.8 Recordkeeping

Pro will maintain reasonable business records, including:

- Tax records (Schedule C, 1099-K, expense documentation) for at least **7 years**;

- Insurance records, license records, and certifications for at least **5 years** after expiration;
- Any client agreements, service records, or photographic documentation that Pro creates outside the Platform, retained as Pro chooses for Pro's own business.

5.9 Professional Standards

Pro will maintain reasonable professional standards consistent with the cleaning services industry, including:

- Punctuality and professional demeanor;
- Reasonable attention to Client property;
- Compliance with the Acceptable Use Policy, including weapons, intoxication, recording, and confidentiality rules;
- Honest representation of services and qualifications.

Nothing in this Section 5.9 entitles PureTask to direct Pro's methods of work; it sets baseline expectations that Pro applies in Pro's own professional judgment.

6. Use of the Platform

PureTask grants Pro a limited, revocable, non-exclusive, non-transferable license to use the Platform to discover, accept, schedule, communicate about, and receive payment for Bookings. Pro will:

- Use the Platform consistent with the Platform Terms;
- Maintain accurate profile information;
- Safeguard account credentials;
- Not interfere with the Platform's operation, security, or integrity.

PureTask may modify, suspend, or discontinue features at any time. PureTask does not guarantee any particular volume of Bookings.

7. Compensation and Platform Fees

7.1 Pro's Compensation

Pro is compensated by the **Client** directly for Pro Services, in the amount Pro sets (subject to the maximum-rate ceiling). PureTask is not the source of Pro's compensation.

7.2 PureTask's Platform Fee

Pro agrees to pay PureTask a **flat per-Booking Platform Fee**, disclosed in the Pro dashboard, in exchange for use of the Platform's technology, matching, payment facilitation, dispute mediation, and trust-and-safety services. The Platform Fee is deducted from the Client's payment before remaining funds are released to Pro's connected Stripe Express account.

PureTask may change the Platform Fee on no less than **30 days'** advance notice. Continued use of the Platform after the effective date constitutes acceptance. Pro may terminate this Agreement (Section 14) if Pro does not agree.

7.3 No Commission on Tips

Tips paid by Clients are paid in full to Pro, less only Stripe's processing fee on the tip itself. PureTask retains no portion.

7.4 Pass-Through Fees

PureTask may collect and remit pass-through fees (rush, same-day, trust-and-safety, cancellation, taxes) from the Client. These are not part of Pro's compensation.

8. Payment Processing (Limited Agent of the Payee)

PureTask acts as a **limited agent of the payee (Pro)** solely for the purpose of accepting payment from the Client on Pro's behalf through **Stripe Connect Express**. The limited agency:

- Is limited to payment collection and remittance;
- Terminates upon disbursement to Pro's connected Stripe Express account;
- Does **not** create any broader agency, employment, partnership, or fiduciary relationship;
- Is intended to qualify for the "agent of the payee" exemption under **Cal. Fin. Code § 2010(l)**, **Texas Finance Code § 151.302**, and **Florida Statutes § 560.103(23)**.

Pro authorizes PureTask to receive payments on Pro's behalf, deduct the Platform Fee and pass-through fees, and direct Stripe to remit the balance to Pro's connected account.

9. Background Checks and Identity Verification

9.1 Initial Screening

Pro consents to identity verification and background screening conducted through PureTask's third-party vendors **only pursuant to the separate Standalone FCRA Disclosure and Authorization** signed at signup.

9.2 Ongoing Rechecks

Pro consents to **ongoing periodic rechecks** of background and watchlist information at PureTask's discretion, no less than annually. **Continued use of the Platform constitutes renewed consent** to ongoing rechecks.

9.3 Reporting Material Changes

Pro will promptly notify PureTask of any material change in Pro's background, including any new felony conviction, that may affect Pro's eligibility.

9.4 Trust Not Supervision

Background screening is for trust and safety, not as a method of supervising Pro Services.

10. Representations and Warranties

Pro represents and warrants that:

- a. Pro has full power and authority to enter into this Agreement;
- b. Pro is at least 18 years of age and legally authorized to work in the jurisdiction where Pro Services are performed;
- c. Pro maintains the business license, EIN, or insurance required by Section 1.B and Section 5.3;
- d. Pro's execution of this Agreement does not conflict with any other agreement Pro has entered into;
- e. Pro is not on any U.S. sanctions list (including OFAC's SDN List);
- f. The information Pro provides to PureTask is true, accurate, and complete;
- g. Pro has not made any material misrepresentation to PureTask;
- h. Pro will perform Pro Services in a workmanlike manner consistent with industry standards.

These representations and warranties are continuing and may be re-confirmed at any time at PureTask's reasonable request.

11. Confidentiality

11.1 Client Information

Pro will maintain in confidence all non-public information about Clients that Pro learns through the Platform or while performing Pro Services, including names, addresses, access codes, and observations made at Client properties. Pro will use such information **only** to perform Pro Services for that specific Booking.

11.2 Platform Information

Pro will maintain in confidence any non-public technical or business information about the Platform that PureTask provides.

11.3 No Restraint on Trade

Nothing in this Section 11 prevents Pro from using Pro's general knowledge, skill, or experience to perform cleaning services for other clients or platforms.

11.4 Survival

This Section 11 survives termination of this Agreement.

12. Intellectual Property

12.1 Pro's IP

Pro retains ownership of any pre-existing intellectual property and any content Pro creates outside the Platform.

12.2 PureTask's IP

PureTask retains all right, title, and interest in the Platform, its software, designs, trademarks (including "PureTask" and "Dash"), and related intellectual property.

12.3 License of Pro Content to PureTask

Pro grants PureTask a worldwide, non-exclusive, royalty-free, sublicensable license to use, host, store, reproduce, modify, display, and distribute content Pro submits to the Platform (profile photos, before/after photos, reviews) for operating, providing, marketing, and improving the Platform.

12.4 Feedback

If Pro provides feedback or suggestions, Pro grants PureTask an unrestricted, perpetual, irrevocable, royalty-free license to use such feedback without obligation to Pro.

13. Indemnification

Pro will defend, indemnify, and hold harmless PureTask LLC, its members, managers, officers, employees, contractors, and agents from any claims, losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to:

- Pro's performance or non-performance of Pro Services;
- Pro's breach of this Agreement, the Platform Terms, or applicable law;
- Pro's tax obligations;
- Pro's engagement of any subcontractor or employee;
- Property damage, personal injury, theft, or other harm associated with Pro Services;
- **Any claim by any taxing authority, workers' compensation insurer, unemployment-insurance authority, or other regulator that Pro should have been classified as an employee for any purpose**, including any wage-and-hour, payroll-tax, UI, WC, or PAGA claim arising therefrom; or
- Pro's misrepresentation in any representation or warranty in Section 10.

This indemnity does **not** apply to claims arising from PureTask's gross negligence or willful misconduct.

14. Limitation of Liability

To the maximum extent permitted by law, PureTask's total aggregate liability arising out of or related to this Agreement or the Platform shall not exceed the **total Platform Fees paid by Pro to PureTask in the six (6) months preceding the event giving rise to the claim.**

PureTask is not liable for any indirect, incidental, special, consequential, exemplary, or punitive damages, including lost profits or lost opportunities. These limitations do not apply to liability that cannot be limited under applicable law.

15. Term, Suspension, and Termination

15.1 Term

This Agreement begins when Pro accepts it and continues until terminated.

15.2 Termination by Pro

Pro may terminate at any time by emailing **otherpuretask@gmail.com** or using the deactivation feature. Termination does not relieve Pro of obligations incurred before termination.

15.3 Termination or Suspension by PureTask

PureTask may suspend or terminate this Agreement:

- **With notice and 14-day cure period** for non-material breaches that are capable of being cured;
- **Immediately, with or without notice,** for:
 - Material breach incapable of cure;
 - Failure of any required background, identity, or trust-and-safety screening;

- Loss of required license, EIN, or insurance;
- Fraud, harassment, theft, violence, weapons-related conduct, illegal-substance use, or other serious misconduct;
- Substantial threat to User safety;
- Material misrepresentation in Section 10;
- Receipt of repeated serious Client complaints;
- Legal requirement to terminate;
- Other lawful reason in PureTask's reasonable discretion.

15.4 Effect of Termination

Upon termination, Pro's license to use the Platform ends. Sections 3, 5, 8, 10, 11, 12.2, 12.3, 13, 14, 15.4, and 17-19 survive.

16. No Restrictive Covenants

Except for the Platform Attribution Fee described in Section 15.A of the Terms of Service (which applies to Clients, not Pros, and is limited to 30 days post-Booking), there are **no restrictive covenants** in this Agreement. Pro is not subject to any non-compete, non-solicit of clients, or non-solicit of Pros restriction. This provision is intended to comply with **California Business & Professions Code § 16600** and analogous laws in Texas and Florida.

17. Dispute Resolution

Disputes between Pro and PureTask arising out of or related to this Agreement are governed by the **Governing Law, Informal Resolution, Arbitration, Class-Action Waiver, Jury-Trial Waiver, McGill, PAGA, and Opt-Out provisions of Section 22 of the Terms of Service**, which are incorporated by reference.

The **30-day arbitration opt-out** described in Section 22.9 of the Terms of Service applies to this Agreement.

18. Modifications

PureTask may modify this Agreement upon **30 days'** advance notice (by email or in-app). Pro's continued use after the effective date constitutes acceptance. If Pro does not agree, Pro must stop using the Platform.

19. Tax Reporting and Acknowledgment

Pro acknowledges:

- Pro is a self-employed independent contractor for federal and state tax purposes;
- Pro is responsible for filing IRS Schedule C (Form 1040) or similar, and paying self-employment tax;
- Pro is responsible for estimated quarterly tax payments;
- **Stripe** issues **IRS Form 1099-K** and applicable state equivalents;
- PureTask does **not** issue Form W-2 or Form 1099-NEC.

Pro will provide PureTask and Stripe with a valid **IRS Form W-9** (or applicable substitute) and any other tax documentation reasonably requested.

20. General Provisions

20.1 Entire Agreement

This Agreement, with the Platform Terms incorporated by reference, constitutes the entire agreement regarding Pro's use of the Platform.

20.2 Severability

If any provision is unenforceable, the remainder remains in effect, modified to the minimum extent necessary.

20.3 No Waiver

Failure to enforce any provision is not a waiver.

20.4 Assignment

Pro may not assign without consent. PureTask may assign freely.

20.5 Notices

Notices to Pro by email or in-app. Notices to PureTask: **PureTask LLC, otherpuretask@gmail.com.**

20.6 Governing Law and Venue

California law, Sacramento County venue, per Section 22 of the Terms of Service.

20.7 Counterparts; Electronic Acceptance

Electronic acceptance has the same legal effect as a handwritten signature under E-SIGN and UETA.

20.8 Headings

For convenience only; no interpretive effect.

Pro Acknowledgment

By clicking “I Accept” or signing below, Pro acknowledges:

1. Pro has read and understood this Agreement.
2. Pro is at least 18 years of age and legally authorized to enter into this Agreement.
3. Pro understands Pro is an **independent contractor**, not an employee, and accepts all responsibilities described herein.
4. Pro understands Pro is free to refuse Bookings, set Pro’s own rates and schedule, and work for other platforms and clients.
5. Pro has had the opportunity to consult with an attorney, accountant, or business advisor.

Pro Signature (electronic): _____

Printed Name: _____ **Business Name (if any):** _____ **Date:** _____

PureTask LLC By: _____ **Name:** Nathan Chiaratti, Member **Date:** _____

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